

The Lieber Code

Henry Dunant was not the first to see the need for a code of conduct for the battlefield. Francis Lieber was a German-American academic who had fought for Prussia during the Napoleonic Wars and was injured at the Battle of Waterloo in 1815. During the Civil War (1861–1865), he became aware of the mistreatment of civilians, spies, and escaped slaves and saw the need for a code of ethics. The Lieber Code was adopted by President

Abraham Lincoln in 1863 and was the first modern codification of the laws of conflict. It was legally binding and not merely issued as advice.

The Lieber Code explicitly banned “taking no quarter” (which amounted to killing prisoners of war). It also emphasized the need to treat civilians in an ethical and humane fashion. Although it was not always adhered to, it served as a blueprint for the Hague Conventions of 1899 and 1907, and was the inspiration for most later war regulations.

agreement. By the end of 1867, all the key European powers had ratified the agreement, and the United States signed up in 1882. The IRCIC body was renamed the International Committee of the Red Cross (ICRC) in 1875. It became the neutral body that actively assisted the wounded on the battlefield.

In 1899, delegates from 26 nations met in The Hague, in the Netherlands, and agreed to strengthen international law covering the conduct of warfare. The delegates adopted the Hague Convention, which was largely based on the Lieber Code. The Hague Convention incorporated the First Geneva Convention; agreed to establish a Permanent Court of Arbitration; and extended protection to cover marked hospital ships, shipwrecked soldiers, and combatants at sea.

In 1906, the Swiss government arranged a conference of 35 states to adopt a Second Geneva Convention. This further extended protection for those captured or wounded in battle and recommended the repatriation of prisoners of war (which finally became mandatory in 1949). The Third Geneva Convention, adopted

in 1929, extended the provisions again, notably to include the fair treatment of prisoners of war.

World War II's impact

Despite being a signatory to the Convention of 1929, the German state was responsible for horrific acts within civilian concentration camps and military prison camps before and during World War II (1939–1945). These abuses included torture, human experimentation,

and genocide on an unprecedented scale: 6 million Jews died in the Holocaust, and up to 11 million other civilians and prisoners of war died under Nazi rule. Although the worst offender, Germany was far from alone among nations in ignoring the Geneva Conventions.

The barbarity of World War II demonstrated that the existing Conventions were not strong enough. The war crimes had been so abhorrent that they damaged the entire international community. The ICRC was the driving force behind extending protection to cover civilians and toughening up the enforcement of the Conventions. Its proposals were adopted at an International Red Cross Conference in Stockholm in 1948.

The following year, the Fourth Geneva Convention was adopted at a conference in Geneva attended by delegates from 64 nations. Whereas

Among those incarcerated at the Nazi concentration camp of Auschwitz in World War II were 230,000 children. Mostly Jews, more than 1.1 million men, women, and children died here.

